



NCIA COMPETITIVE PROCUREMENT DISPUTE RESOLUTION PROCEDURE

Table of Contents

1. Introduction and Policy	3
2. Definitions	3
3. Filing a Complaint	4
4. Resolving Complaints	5

NCIA COMPETITIVE PROCUREMENT DISPUTE RESOLUTION PROCEDURE

1. Introduction and Policy

- 1.1. The North Atlantic Treaty Organization (NATO) and consequently the NATO Communications and Information Agency (NCIA), including its personnel, assets and facilities, enjoy immunity from jurisdiction.
- 1.2. Disputes at Procurement Authority Level related to the NCIA Competitive Procurement process shall be exclusively and finally resolved in accordance with the procedure described herein. Matters arising after contract award, including disputes related to contract administration or performance, fall outside the scope of this procedure.
- 1.3. The NCIA Competitive Procurement Dispute Resolution Procedure ("Procedure") establishes an expeditious process for resolving disputes described herein.
- 1.4. NCIA will resolve competitive procurement disputes in accordance with this Procedure, absent contrary language in the solicitation. When the solicitation contains such contrary language, that solicitation language controls.

2. Definitions

- 2.1. **Definitions** of terms found in Appendix 3, Annex 1, of "Procedure for NATO Competitive Procurement" apply unless otherwise stated below or in the solicitation. The aforementioned document can be found on NCIA's website under Business>Procurement>[NATO Procurement Policy](#).
- 2.2. **Bid**: means a formal offer to provide goods, works, or services at a stated price under specified conditions, submitted in response to an NCIA solicitation.
- 2.3. **Calendar Day**: means a day, from 08:30 to 17:30 local time of the NCIA point of contact office specified in the solicitation for receipt of a complaint. For purposes of timeliness, if the final day to file a complaint falls on a calendar day on which that office is closed, the final day shall extend to the next calendar day on which that office is open.
- 2.4. **Complaint**: means a written demand or written assertion received via email by the NCIA point of contact stated in the solicitation by a Bidder, an Interested Bidder, or an Interested Party related to the terms of or actions taken in connection with an NCIA solicitation.
- 2.5. **Contract Award Decision**: means, in the context of a specific solicitation, the first written notice from NCIA to the Bidder, Interested Bidder, or Interested Party that:
 - 2.5.1. Excludes that Bidder, Interested Bidder, or Interested Party from further competition or contract award consideration;
 - 2.5.2. Excludes that Bidder, Interested Bidder, or Interested Party from a potential

award under a specific solicitation; or,

- 2.5.3.** Notifies the Interested Party or Interested Bidder of another's receipt of a contract award to the specific solicitation.

3. Filing a Complaint

3.1. Timeliness:

- 3.1.1.** Unless specified otherwise in the solicitation, the NCIA point of contact stated in the solicitation must receive a Complaint within fifteen (15) calendar days from the Calendar Day the filing Bidder, Interested Bidder, or Interested Party first knew (including a Contract Award Decision), or ought to have known, about the circumstances giving rise to the grounds for the Complaint, whichever is earlier, for the Complaint to be timely. A copy of the Complaint shall also be sent to: solicitation.dispute@ncia.nato.int

- 3.1.2.** For certain procurements, including lower-value or streamlined acquisitions, NCIA may establish a shorter mandatory deadline for the lodging of a Complaint. Any such shortened deadline shall be expressly stated in the solicitation documentation. In the absence of an expressly stated shorter deadline, the fifteen (15) calendar-day period in paragraph 3.1.1 shall apply by default.

3.1.3. Exceptionally:

- 3.1.3.1.** If NCIA offers the Bidder, Interested Bidder, or Interested Party an opportunity for a debriefing; and
- 3.1.3.2.** The Bidder, Interested Bidder, or Interested Party timely requests that offered debriefing; then
- 3.1.3.3.** The calendar days between the request and delivery of the debriefing, including the calendar days of the request and the delivery themselves, do not count towards the calendar day calculation specified in paragraph 3.1.1 for circumstances giving rise to Complaint grounds solely disclosed in the debriefing.

3.2. Procedural Requirements: NCIA may dismiss, without further consideration, any Complaint failing to:

- 3.2.1.** List the name, address, email address, and telephone number of the filing Bidder, Interested Bidder, or Interested Party;
- 3.2.2.** Include a reference number and subject, such a solicitation or contract number and title;
- 3.2.3.** Be signed, whether in ink or electronically, by a representative of the filing Bidder, Interested Bidder, or Interested Party asserting authority to make decisions concerning the Complaint on behalf of that entity;

3.2.4. Be submitted in English;

3.2.5. Set forth in a clear and concise matter, textually separated and organized coherently:

3.2.5.1. Each ground the filer would like NCIA to consider; and

3.2.5.2. How the filer timely complied with paragraph 3.1 or, if not, what exceptional and unique circumstances merit NCIA's consideration of the untimely Compliant, while recognizing the equities of the other Bidders and NCIA's charge from the Allied Nations to deliver goods and service timely.

3.2.6. State the relief desired that NCIA is capable of providing; and

3.2.7. Be free of markings restricting NCIA's ability to collaborate internally and with necessary NATO stakeholders to resolve the Complaint, any of whom would be bound to professional secrecy.

3.3. Substantive Requirements:

3.3.1. The Complaint must allege, and has the burden of proving, how the terms of or actions taken in connection with the solicitation were:

3.3.1.1. Clearly unreasonable;

3.3.1.2. Materially violated one or more applicable procurement rules or principles applicable to NCIA;

3.3.1.3. Prejudiced the filer's direct economic interests; and

3.3.1.4. But for NCIA's clearly unreasonable and material violation of one or more applicable procurement rules or principles applicable to NCIA, the filing Bidder, Interested Party, or Interested Bidder has, or had, a substantial chance of being awarded the contract.

3.3.2. NCIA may dismiss, without further consideration, any Compliant grounds that are:

3.3.2.1. related to deadlines;

3.3.2.2. untimely, absent NCIA granting an exception (see paragraph 3.2.5.2);

3.3.2.3. unsubstantiated;

3.3.2.4. merely expressing disagreement with NCIA's exercise of discretion; or

3.3.2.5. concerning matters beyond the control, responsibility, or authority of NCIA.

4. Resolving Complaints

4.1. Initial Notice and Review:

4.1.1. Upon receipt of a Complaint, NCIA will aim to confirm receipt with the filing Bidder, Interested Bidder, or Interested Party within two (2) Calendar Days.

4.1.2. NCIA will then conduct an initial review to ascertain whether:

- 4.1.2.1.** The filer is a Bidder, Interested Bidder, or Interested Party;
 - 4.1.2.2.** The Complaint is timely;
 - 4.1.2.3.** The Complaint facially meets all requirements stated in paragraph 3 of this Procedure and any additional requirements stated in the solicitation;
 - 4.1.2.4.** The Complaint alleges any grounds described in paragraph 3.3.2; and,
 - 4.1.2.5.** The requested relief is within NCIA's ability to grant.
- 4.1.3.** If NCIA determines that the Complaint fails to satisfy a requirement under paragraph 4.1.2, NCIA will advise the filing entity in writing with an explanation.
- 4.1.4.** If the deficiency is not related to timeliness, the filing Bidder, Interested Bidder, or Interested Party may re-file the Complaint once within two (2) calendar days from NCIA's written explanation. Such one-time re-filing will be considered timely.

4.2. Notice to Others:

- 4.2.1.** If NCIA receives a Complaint that meets the requirements of paragraph 4.1.2 after having already notified another Bidder of contract award, NCIA will notify that Bidder in writing that a Complaint has been received. That writing will further instruct on how the parties will further proceed. It will not contain or describe the contents of the Complaint.
- 4.2.2.** Beyond paragraph 4.2.1, NCIA will generally not notify other Bidders of receipt of a Complaint. However, NCIA may do so at its sole discretion. Any such notice will not contain or describe the contents of the Complaint.
- 4.2.3.** If NCIA suspends a contract award, NCIA will communicate that decision to all Bidders.
- 4.2.4.** NCIA may, at its sole discretion, request Bidders to extend the period for which their bids remain valid. Bidders are free to decline such an extension. However, failure to extend bid validity period may result in ineligibility for award.

4.3. Complaint Consideration:

- 4.3.1.** NCIA will consider any Complaint meeting the requirements of paragraph 4.1.2.
- 4.3.2.** In considering the Complaint, NCIA may request clarifying information from the filing Bidder, Interested Bidder, or Interested Party. Such request may include remote or in-person meetings, with each entity bearing its own expenses.
- 4.3.3.** Any such meeting may be recorded by NCIA or memorialized in NCIA-drafted minutes, which NCIA may ask the filing entity to review, sign, or both.

4.3.4. Clarifying information received by NCIA, regardless of medium, shall not alter any Bid; shall not constitute an additional Complaint ground; shall not be shared with any other Bidder, Interested Bidder, or Interested Party; and must comply with paragraph 3.2.7.

4.3.5. The filing entity is not required to provide clarifying information. However, NCIA may draw negative inferences from a decision not to provide requested clarification.

4.4. Complaint Decision:

4.4.1. After considering the Complaint, NCIA will decide whether the filing Bidder, Interested Bidder, or Interested Party proved all the requirements described in paragraph 3.3.1.

4.4.2. NCIA will undertake best efforts to decide within fourteen (14) Calendar Days after receipt of the Complaint.

4.4.3. NCIA will communicate its decision, in writing, to the filling Bidder, Interested Bidder, or Interested Party.

4.4.4. This written decision shall:

4.4.4.1. State NCIA's decision and how NCIA intends to proceed; and

4.4.4.2. If the decision is adverse to the filing entity:

4.4.4.2.1. Include an explanation of NCIA's decision; and

4.4.4.2.2. State whether the filing entity may raise the matter to its national delegation for potential further consideration at the relevant NATO committee.

4.4.5. Generally, only decisions concerning Complaints filed on solicitations funded by NATO common funds in excess of Established Financial Limit (EFL) E qualify for further NATO Committee-level consideration. All other NCIA decisions are final.

End of NCIA Competitive Procurement Dispute Resolution Procedure